

ATPL EASA STUDY GUIDE | 010 - AIR LAW

Chapter 24: Security & Unlawful Interference

Syllabus Source: CAE Oxford (pp. 483-492) | Pass Target: >= 90% AviationExam

1. SECURITY ARCHITECTURE & OBJECTIVES

Annex 17 establishes Standards and Recommended Practices to safeguard international civil aviation against acts of unlawful interference. Each Contracting State must designate an appropriate authority for civil aviation security.

- Security Restricted Area (SRA): Airside areas where access is controlled to ensure civil aviation security (e.g. passenger boarding areas, baggage sorting areas, aprons). All persons and vehicles are screened 100%.
- 100% Hold Baggage Screening: All originating hold baggage must be screened prior to being loaded onto commercial aircraft.
- Flight Deck Security Door: On commercial aeroplanes with MTOM > 54,000 kg or passenger seating > 19, the flight crew compartment door must be capable of being locked from the inside and resist small arms fire and grenade shrapnel.

2. UNRULY PASSENGER THREAT LEVELS (ICAO DOC 9811)

- Level 1: Disruptive Behavior: Verbal abuse, failure to follow crew instructions, non-violent disruptive conduct.
- Level 2: Physically Abusive Behavior: Physical contact, pushing, shoving, kicking, damage to cabin property.
- Level 3: Life-Threatening Behavior: Display or threat of weapons, credible terroristic threat, direct physical injury.
- Level 4: Attempted / Actual Flight Deck Breach: Attempt to force cockpit entry, hijack attempt, sabotage.

3. IN-FLIGHT SECURITY OFFICERS (SKY MARSHALS)

Under Annex 17, the deployment of In-Flight Security Officers (IFSOs) shall be subject to bilateral agreement between the States involved. When deployed, IFSOs are government personnel authorized to carry firearms on board. The Pilot-in-Command retains ultimate command of the aircraft, but the IFSO operates in accordance with their national mandate.

4. REGULATED AGENTS & AIR CARGO SECURITY

A Regulated Agent (RA) is an agent, freight forwarder, or entity that conducts business with an operator and applies security controls accepted by the competent authority. Cargo from a regulated agent or known consignor maintains secure chain of custody and may be loaded without duplicate screening.

5. AVIATIONEXAM PRACTICE QUESTIONS (WITH EXPLANATIONS)

Q1: Which aircraft are required to have an armored, lockable flight deck security door under Annex 6/17?

[A] All commercial aircraft without exception [B] Aeroplanes with MTOM > 5,700 kg only [C] Passenger aeroplanes with MTOM > 54,000 kg or seating capacity > 19 passengers [D] Multi-engine turboprops only

[*] OFFICIAL DEFINITION - Detailed Answer Explanation

CORRECT: [C]. Armored, bullet-resistant lockable cockpit doors are required on passenger aeroplanes exceeding 54,000 kg MTOM or more than 19 passenger seats.

Q2: Under ICAO threat classifications, what level corresponds to an attempted cockpit breach?

[A] Level 1 [B] Level 2 [C] Level 3 [D] Level 4

[*] OFFICIAL DEFINITION - Detailed Answer Explanation

CORRECT: [D]. Level 4 is the highest threat level, denoting an attempted or actual breach of the flight crew compartment.

Q3: What transponder code must be squawked in the event of unlawful interference (hijack)?

[A] 7000 [B] 7500 [C] 7600 [D] 7700

[*] OFFICIAL DEFINITION - Detailed Answer Explanation

CORRECT: [B]. Squawk Mode A Code 7500 denotes hijacking / unlawful interference.

Q4: What is the legal status of In-Flight Security Officers (IFSOs) on international commercial flights?

[A] Permitted on all flights without prior notification [B] Permitted only with mutual agreement between the State of the Operator and the State of destination [C] Strictly prohibited by ICAO [D] Mandatory on all flights over 5 hours

[*] OFFICIAL DEFINITION - Detailed Answer Explanation

CORRECT: [B]. Annex 17 mandates that deployment of armed security officers is subject to bilateral agreement between States.

Q5: What is a 'Regulated Agent' in the context of aviation security under Annex 17?

[A] An armed police officer at the airport [B] An agent, freight forwarder, or entity that conducts business with an operator and applies security controls accepted by the competent authority [C] A customs broker [D] An airline ticketing manager

[*] OFFICIAL DEFINITION - Detailed Answer Explanation

CORRECT: [B]. A Regulated Agent is an entity authorized to apply approved security screening and chain-of-custody controls to air cargo.

Q6: Which international convention was the first to address offenses and certain other acts committed on board aircraft?

[A] Tokyo Convention (1963) [B] Hague Convention (1970) [C] Montreal Convention (1971) [D] Rome Convention (1952)

[*] OFFICIAL DEFINITION - Detailed Answer Explanation

CORRECT: [A]. The Tokyo Convention of 1963 was the first international convention establishing jurisdiction and powers of the aircraft commander over offenses on board.

Q7: What is the primary focus of the 1971 Montreal Convention regarding aviation safety?

[A] Economic regulation of air fares [B] Suppression of unlawful acts against the safety of civil aviation (sabotage, explosive devices, and damaging facilities) [C] Suppression of unlawful seizure of aircraft (hijacking) [D] Carrier liability for lost baggage

[*] OFFICIAL DEFINITION - Detailed Answer Explanation

CORRECT: [B]. The Montreal Convention of 1971 covers acts of sabotage, damage to air navigation facilities, and placing destructive devices (the Hague Convention of 1970 covers hijacking).